

CONTRACT: SaaS Agreement - Salesforce

Contract Details

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Vendor	Salesforce
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Contract Content

SaaS AGREEMENT - SALESFORCE

Contract ID: C-008

This SaaS Agreement ("Agreement") is entered into as of the Effective Date (defined below) by and between Salesforce, a Delaware corporation with its principal place of business at 415 Mission Street, San Francisco, CA 94105 ("Vendor"), and the entity identified as the customer in the applicable Order Form ("Customer"). Vendor and Customer are collectively referred to as the "Parties" and individually as a "Party."

1. DEFINITIONS

- 1.1 "Effective Date" means the date specified in the Order Form as the start date of the subscription.
- 1.2 "Order Form" means the document executed by the Parties that specifies the Services to be provided under this Agreement.
- 1.3 "Services" means the software-as-a-service (SaaS) offerings provided by Vendor as described in the Order Form.
- 1.4 "Confidential Information" means any non-public information disclosed by one Party to the other Party that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure.

2. SCOPE OF SERVICES

- 2.1 Vendor agrees to provide Customer with access to the Services as described in the applicable Order Form.

2.2 Vendor shall use commercially reasonable efforts to ensure the Services are available in accordance with the service levels set forth in the Service Level Agreement ("SLA") attached to this Agreement.

3. TERM AND TERMINATION

3.1 This Agreement shall commence on the Effective Date and continue for the term specified in the Order Form, unless earlier terminated in accordance with this Agreement.

3.2 Either Party may terminate this Agreement for material breach by the other Party, provided that the breaching Party fails to cure such breach within thirty (30) days of receiving written notice.

3.3 Upon termination, Customer shall immediately cease all use of the Services, and Vendor shall provide Customer with access to its data for a period of thirty (30) days following termination.

4. FEES AND PAYMENT

4.1 Customer shall pay all fees specified in the Order Form in accordance with the payment terms therein.

4.2 All fees are exclusive of applicable taxes, which shall be the responsibility of Customer.

4.3 Late payments shall accrue interest at the rate of one and one-half percent (1.5%) per month or the maximum rate permitted by law, whichever is lower.

5. CONFIDENTIALITY

5.1 Each Party agrees to protect the other Party's Confidential Information with the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care.

5.2 Confidential Information shall not include information that: (a) is or becomes publicly available without breach of this Agreement; (b) was known to the receiving Party prior to disclosure; (c) is received from a third party without restriction; or (d) is independently developed by the receiving Party.

6. DATA PROTECTION

6.1 Vendor shall implement and maintain appropriate technical and organizational measures to protect Customer Data against unauthorized access, loss, or disclosure.

6.2 Vendor shall comply with all applicable data protection laws and regulations, including but not limited to the General Data Protection Regulation (GDPR) and the California Consumer Privacy Act (CCPA), as applicable.

7. INTELLECTUAL PROPERTY

7.1 Vendor retains all rights, title, and interest in and to the Services, including all related intellectual property rights.

7.2 Customer is granted a limited, non-exclusive, non-transferable right to access and use the Services during the term of this Agreement solely for its internal business purposes.

8. WARRANTIES

8.1 Vendor warrants that the Services will perform materially in accordance with the documentation provided to Customer.

8.2 Vendor does not warrant that the Services will be error-free or uninterrupted.

8.3 Except as expressly provided in this Agreement, the Services are provided "as is," and Vendor disclaims all other warranties, express or implied, including any warranties of merchantability, fitness for a particular purpose, or non-infringement.

9. LIABILITY LIMITATION

9.1 To the maximum extent permitted by law, Vendor's total liability arising out of or related to this Agreement shall not exceed the fees paid by Customer to Vendor in the twelve (12) months preceding the

event giving rise to the claim.

9.2 In no event shall either Party be liable for any indirect, incidental, consequential, special, or punitive damages, even if advised of the possibility of such damages.

10. INDEMNITY

10.1 Vendor shall indemnify, defend, and hold harmless Customer from and against any third-party claims alleging that the Services infringe or misappropriate any intellectual property rights, provided that Customer promptly notifies Vendor of such claims and allows Vendor to control the defense and settlement of such claims.

10.2 Customer shall indemnify, defend, and hold harmless Vendor from and against any third-party claims arising from Customer's use of the Services in violation of this Agreement or applicable law.

11. GOVERNING LAW

11.1 This Agreement shall be governed by and construed in accordance with the laws of the State of California, without regard to its conflict of laws principles.

12. DISPUTE RESOLUTION

12.1 Any disputes arising out of or relating to this Agreement shall first be resolved through good faith negotiations between the Parties.

12.2 If the dispute cannot be resolved through negotiations, it shall be submitted to binding arbitration in San Francisco, California, in accordance with the rules of the American Arbitration Association.

13. MISCELLANEOUS

13.1 This Agreement, including all Order Forms and attachments, constitutes the entire agreement between the Parties and supersedes all prior agreements and understandings, whether written or oral, relating to its subject matter.

13.2 No modification or amendment of this Agreement shall be effective unless in writing and signed by both Parties.

13.3 Neither Party may assign this Agreement without the prior written consent of the other Party, except in connection with a merger, acquisition, or sale of all or substantially all of its assets.

13.4 If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

13.5 The failure of either Party to enforce any provision of this Agreement shall not constitute a waiver of that provision or any other provision.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

[Signature Block for Vendor]

Name: _____

Title: _____

Date: _____

[Signature Block for Customer]

Name: _____

Title: _____

Date: _____

